

25STCV32331 25STCV32331

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C07%2F10%2F2026

Source SHA-256: c88c332e3c9e4afa50e894b0ed2fa128246ea0b2440f56985e31a70221b5bc87

Case Number: 25STCV32331 Hearing Date: July 10, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

KELLY LUSTER as Power of

Attorney for GLORIADENE MORRIS,

Plaintiff,

vs.

ESTELLE G. OVERTON, et al.,

Defendants.

Case No.:

25STCV32331

Hearing Date:

July 10, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT ROSIE

MORRIS BY AND THROUGH HER GUARDIAN AD LITEM JOEL M. SIMON'S DEMURRER TO
VERIFIED COMPLAINT TO QUIET TITLE

Background

On October 30, 2025, Plaintiff Gloriadene Morris, by and through her attorney-in-fact Kelly Luster ("Plaintiff") filed this action against a number of defendants, alleging one cause of action for quiet title - adverse possession.

Defendant Rosie Morris by and through her Guardian Ad Litem Joel M. Simon ("Defendant") now demurs to Plaintiff's complaint. Plaintiff opposes.

Discussion

As an initial matter, Defendant's counsel's declaration in support of the demurrer attests that "[o]n January 14, 2026, I attempted to meet and confer with Mr.

Eric Davis, counsel for Gloriadene Morris, regarding the instant demurrer and pursuant to the meet and confer requirement for demurrers set forth under

California Code of Civil Procedure §430.41(a)." (Dhalla Decl., ¶ 3.) However, Defendant's counsel states that she "received no response from

Mr. Davis to my letter of January 14, 2026 requesting an opportunity to meet and confer on the issues. However, I did receive confirmation of counsel's

stipulation agreeing to allow us to file Defendant Rosie Morris' demurrer by February 15, 2026." (Dhalla Decl., ¶ 4.) Counsel further attests that they have

not "received further communications from Mr. Davis or his firm regarding the demurrer or any other matter pertaining to the instant action." (Dhalla Decl.,

¶ 5.)

The Court notes that Defendant's counsel's declaration does not demonstrate that the parties met and conferred by telephone or in person, or that Defendant's counsel attempted to do so.

Pursuant to Code of Civil Procedure section

430.41, subdivision (a), "[b]efore filing a

demurrer pursuant to this chapter, the demurring party shall meet

and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Emphasis added.) Such meeting and conferring must be done in good faith with an effort to try to resolve the issues subject to the demurrer.

In light of the foregoing, the hearing on Defendant’s demurrer is continued to _____, 2026 at 2:00 p.m. in Dept. 508.

Defendant is ordered to meet and confer with Plaintiff within 10 days of the date of this Order. If the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Defendant is to thereafter file and serve a declaration setting forth the efforts to meet and confer in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3) within 15 days of this Order.

Defendant is ordered to give notice of this Order.

DATED: July
10, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court